

PETITION TO EXPUNGE

TO: Commissioner of Probation, One Ashburton Place, Room 405, Boston, MA 02108

SELECT appropriate box.

1. ☐ **Delinquency (juvenile) adjudication or youthful offender conviction. Section 100F** - Chapter 276. I ask that the Court expunge my delinquency (juvenile) adjudication or youthful offender conviction, a misdemeanor for which I completed all parts of my sentence at least 3 years ago, or a felony for which I completed all parts of my sentence at least 7 years ago.

2. ☐ **Adult conviction. Section 100G** - Chapter 276. I ask that the Court expunge my adult conviction, a misdemeanor for which I completed all parts of my sentence at least 3 years ago, or a felony for which I completed all parts of my sentence at least 7 years ago.

3. ☐ **Delinquency (juvenile) non-adjudication or any youthful offender or adult non-conviction. Section 100H** - Chapter 276. I ask that the Court expunge my delinquency (juvenile) non-adjudication or youthful offender or adult non-conviction, a misdemeanor for which I completed all parts of my sentence at least 3 years ago, or a felony for which I completed all parts of my sentence at least 7 years ago.

Print: Maria-Alejandra O'Shaughnessy-Whitfield **Date of Birth:** 1999-12-31
(Last Name) (First Name) (Middle Name)

Alias/Maiden/Previous Name: _____

Mailing Address: _____ **City:** _____ **State:** _____ **Zip:** _____

Occupation: _____ **Social Security #** _____ **Phone #** (413) 555-0199 ext. 4417

Father's Name: _____ **Mother's Maiden Name:** _____ **Spouse's Name:** _____

Race: ☐ Asian ☐ American Indian/Alaskan Native ☐ Native Hawaiian/Pacific Islander
☐ Black/African American ☐ White ☐ Other/Mixed Race

Ethnicity: ☐ Hispanic or Latino ☐ Not Hispanic or Latino

Gender: _____

Signature Of petitioner: _____

I understand and acknowledge that signing this petition means all of the statements below are true of the offense I am seeking to have expunged:

- I was under 21 years of age at the time the offense was committed;
- I have no additional offenses (other than minor motor vehicle violations) in Massachusetts or any other jurisdiction;
- I am not currently the subject of an active criminal investigation by any criminal justice agency;
- If the offense is a misdemeanor, all custody (including probation) ended at least 3 years ago;
- If the offense is a felony, all custody (including probation) ended at least 7 years ago;
- The offense did not result in death or serious bodily injury nor was the offense committed with the intent to cause death or serious bodily injury;
- The offense was not committed while armed with or carrying a dangerous weapon;
- The offense was not committed against an elderly or disabled person;
- The offense is not a sex offense, a sex offense involving a child, or sexually violent offense;
- The offense is not Operating Under the Influence (of liquor or drugs);
- The offense is not a firearms violation or a violation for illegal sale of a firearm;
- The offense is not a violation of any restraining or harassment prevention orders;
- The offense is not an assault or assault and battery on a household member; and
- The offense is not a felony violation of General Laws Chapter 265.

Signed under penalties of perjury

Signature Of Petitioner

Date

INSTRUCTIONS TO PETITIONER

Reasons for Expunging a Record Under G.L. c. 276, § 100F, § 100G, or § 100H.

Under Chapter 276, § 100F, § 100G, or § 100H, you can ask a judge to permanently destroy, or "expunge", the official court records in question if all of the conditions listed on the attached Petition are met, and that expungement of the offense in question would be in the interests of justice.

Expungement may also be available in circumstances other than those listed above. If you want to seek expungement under one of these other circumstances, you must fill out a different petition and submit it to the Court.

You can find information about these other provisions, including eligibility requirements, at www.mass.gov.

Will the District Attorney's Office be notified of this Petition?

Yes. If upon review of your Petition it is determined that you meet all of the criteria listed on said Petition, this office will then notify the District Attorney's Office in the County where the offense was prosecuted. The District Attorney then has the right to respond, should they choose to.

Will there be a hearing?

If the District Attorney's Office objects to this Petition, then a hearing will be held. If there is no objection, a hearing may be held, at the discretion of the Court, but is not required.

Can I submit material in support of my Petition?

Yes. You do not have to, but you may provide additional information to support your Petition.

Where to file (mail) this Petition?

Office of the Commissioner of Probation, One Ashburton Place, Room 405, Boston, MA 02108.

Records will be Permanently Destroyed

An order of expungement requires the clerk of the court where the record was created to destroy/permanently erase the trial court records within the care, custody or control of the clerk's office, probation, and the Department of Criminal Justice Information, except for information contained in the domestic violence record keeping system. It also requires criminal justice agencies to destroy/permanently erase the record from all publicly available police logs maintained pursuant to G.L. c. 41, § 98F within their care, custody or control. Further, criminal justice agencies are required to respond to inquiries from any party, including criminal justice agencies, a county agency, a municipal agency or state agency that no record exists.

While the clerk will provide you with a copy of the expungement order, if you want copies of the records, any documents that you filed, or the petition, you must make copies *before* the court orders expungement. Once the record is destroyed, you will not be able to get a copy from the court.

WHAT HAPPENS AFTER YOU SEND IT, AND WHAT IT COSTS

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHERE THIS GOES. Mail the Petition to Expunge to the OFFICE OF THE COMMISSIONER OF PROBATION, ONE ASHBURTON PLACE, ROOM 405, BOSTON, MA 02108. That address is printed on the petition itself, twice: in the TO: line at the top of page 1, and again on page 2 under 'Where to file (mail) this Petition?'.

YOU DO NOT SERVE THE DISTRICT ATTORNEY. This is worth saying plainly because it is the opposite of most record-clearing routes. The petition's own page 2 asks 'Will the District Attorney's Office be notified of this Petition?' and answers: yes - if upon review of your Petition it is determined that you meet all of the criteria listed on the Petition, THAT OFFICE will then notify the District Attorney's Office in the county where the offence was prosecuted. The District Attorney then has the right to respond. Nothing in this route asks you to serve anyone.

WHAT IT COSTS. No source this packet is built from establishes a filing fee for this petition, and none establishes a fee-waiver route. That is not the same as saying it is free. The form's two pages state no fee; the legal-design record for this track records 'None identified in the review' for fees and 'None identified' for a waiver; and the compiled Massachusetts profile carries no fee figure for this route.

SO ASK THE OFFICE THAT TAKES THE FILING. The Office of the Commissioner of Probation, One Ashburton Place, Room 405, Boston, MA 02108 - the same office you are mailing the petition to - is who answers what, if anything, this costs and whether any waiver exists. Ask before you send it.

WILL THERE BE A HEARING? From the petition's own page 2: if the District Attorney's Office objects, a hearing will be held. If there is no objection, a hearing may be held at the discretion of the Court, but is not required.

CAN YOU SEND SUPPORTING MATERIAL? Yes. Page 2 says you do not have to, but you may provide additional information to support your Petition.

THE TWO STAGES. The Commissioner of Probation certifies eligibility under Secs. 100I and 100J. Only after that does the matter reach a judge, with the district attorney on notice, for the determination that expungement is in the interests of justice. Your part is the one petition; the second stage is not something you file.

CONFIDENTIALITY. Petition materials are confidential under Sec. 100N.

WHAT AN ORDER ACTUALLY DOES - AND WHY YOU SHOULD MAKE COPIES FIRST.

An order of expungement requires the clerk of the court where the record was created to DESTROY or permanently erase the trial court records within the care, custody or control of the clerk's office, probation, and the Department of Criminal Justice Information, except for information contained in the domestic violence record keeping system. It also requires criminal justice agencies to destroy or

permanently erase the record from all publicly available police logs maintained under G.L. c. 41, Sec. 98F within their care, custody or control, and requires those agencies to respond to inquiries from any party - including criminal justice agencies, a county agency, a municipal agency or a state agency - that NO RECORD EXISTS.

That is stronger relief than sealing. It is also irreversible. The petition's own page 2 warns: while the clerk will provide you with a copy of the expungement order, if you want copies of the records, any documents that you filed, or the petition, **YOU MUST MAKE COPIES BEFORE THE COURT ORDERS EXPUNGEMENT**. Once the record is destroyed you will not be able to get a copy from the court.

THIS IS NOT THE ONLY EXPUNGEMENT ROUTE IN MASSACHUSETTS. Page 2 says expungement may also be available in circumstances other than these, and that if you want to seek it under one of those you must fill out a **DIFFERENT** petition. Information about the other provisions, including eligibility requirements, is at www.mass.gov.

WHEN TO STOP AND GET HELP INSTEAD.

- Any offence was committed on or after your 21st birthday. The whole route depends on every offence being before it.
- Your record shows more than two convictions, or more than two non-conviction records.
- Whether offences arose from a single incident for counting purposes is unclear. The committed record for this route holds that as a point where self-help ends, in those words, and holds the counting rule with it: "More than two records. Multiple offences arising from the same incident count as one." Three charges from one arrest may therefore be one record rather than three, so if you cannot tell whether yours arose from a single incident, ask rather than giving up the route.
- You have any additional offence other than minor motor vehicle violations, in Massachusetts or any other jurisdiction.
- You are currently the subject of an active criminal investigation by any criminal justice agency.
- The offence is one the petition's own list excludes: it resulted in or was intended to cause death or serious bodily injury; it was committed while armed with or carrying a dangerous weapon; it was against an elderly or disabled person; it is a sex offence, a sex offence involving a child, or a sexually violent offence; it is Operating Under the Influence of liquor or drugs; it is a firearms violation or a violation for illegal sale of a firearm; it is a violation of a restraining or harassment prevention order; it is an assault or assault and battery on a household member; or it is a felony violation of General Laws Chapter 265.
- The district attorney objects and a hearing is set.
- You want expungement in circumstances other than these, which needs a different petition.

READ THE FOURTEEN STATEMENTS BEFORE YOU SIGN. Signing the petition means every one of the statements printed above the signature line is true of the offence you are asking to have expunged. Several of them are eligibility questions in disguise, and you are certifying them under penalties of perjury.

Route: obligation:unit:MA:ma-expunge-time:ma-expunge-time-commissioner-certification ;
obligation:unit:MA:ma-expunge-time:ma-expunge-time-court-determination